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08.10 Introduction

Individuals who will enter or remain in a nursing home under primary Medicaid payment must meet the South Carolina Medicaid Nursing Facility Level of Care criteria. This level of care (LOC) determination is made through pre-admission review by a Community Long Term Care, (CLTC), **SCDHHS worker**. The Level of Care Certification, SCDHHS Form 185, certifies medical necessity.

(See Chapter 9 for other necessary actions relative to PASRR.)

This policy applies to all ages.

08.20 Nursing Home Certification

CLTC has been designated to perform pre-admission review of all applicants for Medicaid-sponsored nursing home care. This function must occur prior to admission to a long term care facility and before the date for which Medicaid vendor payment can begin. This certification includes the designation of an appropriate level of care. Level of care certification is necessary only when an applicant is determined to be at a skilled or intermediate level of care and will enter or remain in a nursing home with Medicaid as the primary payment source. Level of care certification is accomplished by completing a Certification Letter, SCDHHS Form 185.

08.30 When CLTC Certification is Necessary

Any application for Medicaid-sponsored nursing home care requires two eligibility determinations: financial and medical. Financial eligibility is determined by Medicaid Eligibility. The authorization of medical necessity, or pre-admission review, is a function of CLTC.

CLTC certification is required in the following situations:

1. Prior to any Medicaid-sponsored admission to a long term care facility from any location;

Note: *The only exception to this is if the admission is a transfer of a current Medicaid recipient from another long term care facility at the same level of care.*

When an applicant is transferring **from a Phoenix nursing facility to a non-Phoenix nursing facility**, the transferring nursing facility will provide the Level of Care Certification Letter to the accepting non-Phoenix nursing facility.

When the applicant is transferring **from a non-Phoenix nursing facility to a Phoenix nursing facility**, The Phoenix nursing facility that is accepting the applicant will make an electronic nursing home referral. The nursing facility will use the data field on the referral to indicate this case is a transfer from a non-Phoenix nursing facility.

Phoenix will create an application and will create an Eligibility Workflow.

The accepting nursing facility will report a problem in Phoenix and request the applicant's level of care and recurring income be entered into Phoenix.

A copy of the Level of Care Certification letter will be provided by the transferring nursing facility if the applicant is still under the original Level of Care Certification.

2. Prior to re-admission to a long term care facility from any location once Medicaid vendor payment has been terminated.
 - a. Re-admission from the hospital if the stay has exceeded a Medicaid ten (10) calendar day bed hold period. (A patient may be in the hospital 10 full calendar days, returning on the 11th calendar day, without need for re-certification.)

- b. Re-admission to a nursing facility when a patient exceeds nine (9) calendar days of the yearly allowable eighteen (18) calendar days of therapeutic leave or de-institutionalization leave of absence; the calendar day the applicant leaves is counted as Day 1 and the calendar day of return does not count. If the applicant returns after the tenth (10th) calendar day, a new certification is needed.
- c. Re-admission to a nursing facility when a patient exceeds the approved thirty (30) consecutive calendar days for the purpose of participation in an approved rehabilitation program.

Note: If a long term care facility formally discharges a patient, the bed hold policy does not apply. In such cases, an assessment must be completed and a CLTC Level of Care Certification obtained prior to re-admission to a long term care facility.

- 3. Prior to the date Medicaid vendor payment may begin, when a patient's care in a long term care facility is being paid for privately or by Medicare or any other source, and Medicaid sponsorship is being requested.
- 4. If a time-limited certification has expired and Medicaid vendor payment is to continue.
- 5. Prior to the admission of a patient from a facility administered by the Department of Mental Health (DMH) to a non-DMH administered long term care facility.
- 6. Prior to the admission of an Intermediate Care Facility patient from a facility administered by the Department of Disabilities and Special Needs (DDSN) to a non-DDSN long term care facility.
- 7. As requested by the Medicaid Eligibility for income trust and transfer penalty case.

08.31 Certification of Medicare Eligible Applicants

Prior to nursing home admission, applicants who appear potentially eligible for extended care benefits through Medicare should be identified. The facility (hospital or nursing home) should be instructed to pursue Medicare reimbursement. A level of care is not required, and a Level of Care Certification is not issued for these cases.

If a Nursing Home Application is made by a hospital for an applicant but the applicant enters a Phoenix nursing facility under primary Medicare payment, the

CLTC area office will document this in the applicant's narrative and take no further action on the application. The CLTC SCDHHS worker may remove his/her name from the application.

The Phoenix nursing facility will attach themselves to the applicant's nursing home application and the status will change to Participating. The nursing facility will create a request for LOC from CLTC in Phoenix if or when Medicaid conversion is needed.

If a nursing home application is made by a hospital for an applicant but the applicant enters a non- Phoenix nursing facility under primary Medicare payment, the CLTC area office will document this in the applicant's narrative, terminate the application as "Terminated to Medicare" and send a CLTC Notification Form to the participant/ personal contact, PC, and referral source, as appropriate.

08.32 Skilled Nursing Facility Co-payment

If an applicant is eligible for Medicare and Medicaid and is under Medicare sponsorship in a nursing facility, a certification letter is not required for a hospital bed hold period. When Medicare benefits are terminated, the applicant may be referred to CLTC for evaluation of Medicaid sponsorship.

Phoenix Nursing Facilities

When a nursing home resident receiving Medicaid Skilled Nursing Facility Co-Payment is added to a **Phoenix nursing facilities** roster, the application will appear in the CLTC Area Office's unassigned workflows. The CLTC Area Office must determine whether a nursing facility LOC certification is needed at the time of referral or if the applicant is receiving Medicaid co-pay only. When making referrals, the nursing facility should indicate if the person is receiving Skilled Nursing Facility Medicaid co-payment (SNF co-pay). When the facility indicates this, the Centralized Intake worker will notate this in the narrative. If the applicant is receiving Skilled Nursing Facility Medicaid co-payment (SNF co-pay) only and a Nursing Home Conversion is not needed at this time, the case must be assigned to a worker and then unassigned for the case to be removed from the "Unassigned Centralized Intake Workflows". If a Skilled Nursing Facility Medicaid co-payment (SNF co-pay) case is assigned in error, the SCDHHS worker may remove his/her name from the application and document the reason in the narrative.

Note: For an applicant receiving Skilled Nursing Facility Medicaid co-payment (SNF co-pay), the Phoenix nursing facilities should enter the anticipated date of conversion to Medicaid primary payment in the participant's record, even if that date is two-three months away.

08.33 Time-Limited Certifications

An applicant's medical condition or other functional factors may sometimes warrant certification and nursing facility admission for a specific time period. In these situations, CLTC has determined that the applicant can benefit from temporary placement in a long term care facility. The Level of Care Certification will indicate the certification is time limited and will specify the certification period.

If there is a need for continued nursing facility placement at the end of the certification period, the nursing facility must submit a South Carolina Long Term Care Assessment Form 1718, signed CLTC Consent Form, and 14 calendar days of supporting medical documentation to the CLTC Area Office for level of care evaluation at least seven (7) business days before the certification expiration date.

If the CLTC **SCDHHS worker** determines that an applicant meets the skilled or intermediate level of care, a Level of Care Certification Letter, SCDHHS Form 185, will be issued with no time limit.

When certifying an applicant who will not immediately enter a nursing facility but will receive a time-limited certification, the normal thirty (30) calendar day expiration date on the Level of Care Certification, DHHS Form 185, should be indicated and marked along with the time-limited certification block. At the time of admission to the nursing facility, a new Level of Care Certification, DHHS Form 185, should be issued indicating the actual time period covered by the time-limited certification.

If there is a need for a change in level of care during a time-limited certification period, the nursing facility must forward a South Carolina Long Term Care Assessment Form 1718 and a signed CLTC Consent Form to the CLTC Area Office.

08.34 Medicaid Managed Care Organization Plan Members

For a Medicaid Managed Care Organization (MCO) plan member, the Medicaid requirements of participation for nursing facilities apply, including level of care certification, preadmission screening resident review (PASRR), resident assessment, patient's rights, etc.

The MCO **must obtain a level of care certification from CLTC** for a Medicaid MCO program plan member prior to admission to the facility under **primary Medicaid payment**.

CLTC certification is **not required** for Medicaid Skilled Nursing Facility Co-payment (SNF-Co) admissions.

The Level of Care Certification will have an **effective period of forty-five (45) calendar days**.

08.40 Certification Validity

Certification for a person awaiting nursing facility placement is valid for thirty (30) calendar days. The thirty (30) calendar day period begins with the effective date on the

Level of Care Certification, SCDHHS Form 185, and ends with the expiration date.

Note: A Level of Care Certification for a Medicaid MCO enrollee has an effective period of forty-five (45) calendar days.

The expiration date is a valid date of certification for the applicant to enter the nursing facility. If the applicant has not entered the nursing facility by the expiration date on the Level of Care Certification, the applicant's condition must be re-evaluated. (08.51.20 Re-Certification of Non-Waiver Applicant) Upon admission to a long term care facility, certification is valid indefinitely unless:

1. Medicaid benefits are terminated for any reason;
Exception: A Medicaid recipient's benefits are terminated for **thirty-one (31) calendar days or less** for financial eligibility reasons (e.g., excess resources).
2. CLTC has specified that the certification is time-limited (See Section 08.33 Time-Limited Certifications).
3. Applicant enters a nursing facility with a payment source other than Medicaid; the applicant must again be certified before a Medicaid conversion will be allowed.
4. The applicant's condition or location from where the applicant was initially certified changes (e.g., home to hospital or long term care facility to home); the only exception to this rule would be the nursing home's option to hold a bed for up to ten (10) calendar days for an applicant who has been transferred to a hospital. If the applicant **returns to the nursing home on the eleventh (11th) calendar day or before**, certification by CLTC is not necessary.

A Level of Care Certification, SCDHHS Form 185, must not be altered by anyone. In cases where an error has been made, the Level of Care Certification must be destroyed in accordance with HIPAA regulations and a corrected Level of Certification letter issued. The new corrected Level of Care Certification letter must have "Corrected Copy" written in red ink. *Any Level of Care Certification Letter which has been altered is invalid.*

08.41 Facilities Under Denial of Payment for New Admissions

CLTC will be notified when a nursing facility is placed under Denial of Payment for New Admissions (DPNA).

New admissions on or after the DPNA date will not be certified.

- If the applicant, previously certified in the community, wishes to enter a nursing facility that is under denial of payment, the SCDHHS worker will advise the applicant to speak with the nursing facility.

Applicants who entered that facility prior to the DPNA date can be certified for the purpose of converting to Medicaid sponsorship.

- If an applicant, admitted prior to the DPNA date, is admitted to the hospital and exceeds the ten (10) calendar day bed hold, Central Office approval must be obtained prior to issuance of a Level of Care Certification.
- The CLTC Area Office handling the request will email the Nursing Facility Program Area Designee to request approval to complete the certification.

Note: If an applicant is receiving primary Medicare payment with Medicaid co-payment for the nursing facility and exceeds the ten (10) calendar day bed hold, a Level of Care Certification is not required. Nursing facilities should contact the Nursing Facility Program Area Designee prior to re-admission.

08.50 Pre-Admission Review for Nursing Home Placement

08.51 Certification of Applicant in the Community (non-waiver)

Upon assignment of an Application for Pre-admission Review for Nursing Home

Placement for an applicant located in the community, who is not a waiver participant, the **SCDHHS worker** will:

- Arrange for assessment completion by telephone or visit.
- Obtain signed CLTC Consent Form.

08.51.10 Choice of Location for Care

The Participant Service Choice SCDHHS Form 164 is no longer required for entering a Nursing Home.

08.51.20 Re-Certification of Non-Waiver Applicant

When nursing home placement is imminent, an applicant who was previously certified and closed with an expired certification letter can be re-certified **within a one hundred eighty (180) calendar day** period from the original date of certification.

Upon notification that nursing home placement is imminent, the SCDHHS worker will:

- Create an electronic referral via Centralized Intake for nursing home placement. Review the CLTC Consent Form on file. (This form remains valid for the one hundred eighty (180) calendar day period.)
- Complete assessment through a visit or telephone contact with the applicant and/or Authorized Representative and/or other permitted caregiver supports as appropriate. SCDHHS worker can complete nursing home preadmission assessment by telephone for applicants residing in the community. If the level of care (LOC) is questionable or the applicant requests a face-to-face assessment, then a visit must be made.
- Team conference with another SCDHHS worker to determine level of care.

Note: If the applicant appears to be medically ineligible, a visit must be made prior to the final level of care determination. (Refer to 02.60.10 for Medically Ineligible.)

- Create and send the Level of Care Certification Letter to the applicant/~~primary contact~~ Authorized Representative, Medicaid Eligibility and the admitting nursing facility.
- For non-Phoenix Nursing Facility admissions, terminate the application as “Entered Nursing Home.” For Phoenix Nursing Facility admissions, the SCDHHS worker will document the admission in the narrative and remove his/her name from the application. The application will not be terminated.

Note: If an applicant continues to await placement **beyond one hundred eighty (180) calendar days and the nursing facility placement is imminent**, the SCDHHS worker must visit the applicant and follow policies and procedure for intake, assessment, and level of care (including obtaining a new CLTC Consent Form)

08.52 Certification of a Non-Waiver Hospital Based Applicant

Upon assignment of an application for pre-admission review for nursing home placement for a hospital-based applicant, the SCDHHS worker will:

- Complete the assessment with the applicant and/or ~~primary contact~~ Authorized Representative and other knowledgeable individuals, as needed, to obtain accurate information through a visit or by telephone OR review completed assessment and medical records provided. If the level of care (LOC) is questionable or the applicant requests a face-to-face assessment, then a visit must be made. (The 1718 assessment may be completed by the hospital under Memorandum of Agreement between CLTC and the facility. The facility must provide two weeks of supporting documentation, if available. These documents should be uploaded electronically in Phoenix.)
- Review signed CLTC Consent Form obtained by the facility.
- Complete/ review PASRR (PASRR Policy and Procedure in Chapter 9 must be followed. PASRR may be completed by the facility under Memorandum of Agreement between CLTC and the facility.)
- Team conference with another **SCDHHS worker** to determine tentative level of care.

- Document the team conference and tentative level of care in the narrative record.
- Create and send a CLTC Notification Form to the applicant and/or ~~primary contact~~ Authorized Representative and the facility to communicate the tentative level of care and need to obtain final level of care prior to discharge when nursing home placement is imminent.

Upon notification that nursing home placement is imminent, the **SCDHHS worker** will:

- Review/ update the assessment information with the applicant/ ~~primary contact~~ Authorized Representative and/ or hospital staff.
- Team conference with another **SCDHHS worker** to determine the final level of care.
- Document the assessment review, team conference and final level of care in Phoenix.

Note: Date of Final Level of Care should be the same date that the applicant enters the nursing facility.

- Create and send a Level of Care Certification Letter to the applicant/ Authorized Representative, the Medicaid Eligibility Unit and the admitting nursing facility.
- Terminate application as “Entered Nursing Home” for non-Phoenix nursing facilities.
- **Note:** For Phoenix nursing facilities, the **SCDHHS worker** will not change the application status. He/she will remove his/her name from the application and document case actions in the narrative record.

If a hospital fails to update a tentative nursing facility level of care (LOC) certification and obtain a final level of care certification at the time of hospital discharge to a Phoenix nursing facility, the admitting Nursing Facility will attach to the open CLTC application and contact the CLTC Area Office. The Nursing Facility will not create a new referral. The CLTC Area Office will not terminate the nursing home placement application. The admitting facility will submit a 1718

assessment along with medical records and make a Request for LOC from CLTC via Phoenix.

If a non-Phoenix nursing facility admits a participant without a final level of care certification, the nursing facility will make an electronic referral via Centralized Intake for a Nursing Home Conversion. As part of the electronic referral, the facility will upload the signed Consent Form, 1718 assessment, and supporting documentation to Phoenix.

NOTE: Pre-admission review for nursing home placement is a time limited application. These cases can only be left open for 30 days or closed as tentative greater than 30 days.

08.53 Certification of a Waiver Participant

If a waiver participant changes the service choice to nursing home and nursing home placement is imminent, the Case Manager will:

- Complete an electronic referral via Centralized Intake for Pre-admission Screening for Nursing Home Placement.
- Continue case management, waiver services and monitoring as required by the waiver.

When the application is assigned for assessment, the SCDHHS worker will:

- Complete a new assessment with the applicant or ~~primary contact~~ Authorized Representative by phone or visit.
- Review signed CLTC Consent Form on file.
- Complete/ PASRR (PASRR Policy and Procedure in Chapter 9 must be followed.)
- Team conference with another **SCDHHS worker** to determine level of care. The level of care and the justification for the level of care determination must be properly documented by the SCDHHS worker in the Phoenix narrative.

- Document assessment completion, team conference and level of care in Phoenix.
- Create and send a Level of Care Certification Letter to the applicant/~~primary contact~~ Authorized Representative, Medicaid Eligibility and the admitting nursing facility.

When the participant enters the nursing facility, the Case Manager will:

- Confirm permanent placement decision with participant/Authorized Representative prior to closure.
- Terminate all waiver services effective the day of nursing home admission.
- Notify all providers by phone or phoenix conversation of termination.
- Terminate the waiver application as “Entered Nursing Home.”
- Notify Support Staff to update MMIS RSP to reflect waiver termination.
- Support Staff must update the MMIS RSP within four (4) calendar days.

08.54 Certification for a participant of the Program for All Inclusive Care for the Elderly (PACE)

A referral is not needed for nursing facility level of care certification for PACE participants. If a **new referral for nursing facility level of care (LOC) certification is received for a PACE participant**, the application would be terminated by Centralized Intake as “Inappropriate After Intake.” If Centralized Intake releases the case to the CLTC Area Office, the CLTC Area Office may terminate the application.

08.55 Certification of Out-of-State Applicants

The receiving CLTC Area Office will arrange for evaluation of an applicant who is residing outside of South Carolina but is seeking South Carolina Medicaid sponsored nursing home placement.

Note: The applicant and/or ~~primary contact~~ Authorized Representative must be informed to make financial application with the Medicaid Eligibility Unit.

08.55.10 Applicant Residing in Out-of-State Nursing Home or Hospital

In response to a referral for nursing home placement for an applicant residing in an out-of-state nursing home or hospital, the **SCDHHS worker** will:

- Send the hard copy South Carolina Long Term Care Assessment Form 1718, the hard copy CLTC Consent Form and the hard copy PASRR form to the facility to complete and return to the CLTC Area Office.
- PASRR Policy and Procedure in Chapter 9 must be followed for out-of-state applications.
- Instruct a professional staff member of the transferring facility to obtain written consent and to complete and return the forms to CLTC for review.
- Contact the out-of-state facility by telephone upon receipt of the completed forms to validate the information.
- Team conference with another **SCDHHS worker** to determine the tentative level of care.
- Document the team conference and tentative level of care in the narrative record.
- Create and send a CLTC Notification Form to the applicant and/or ~~primary contact~~ Authorized Representative out-of-state facility, and the admitting facility to communicate the tentative level of care.

Note: Do not include the Appeal Notice with this Notification because this is a tentative level of care.

The case must be reviewed in sixty (60) calendar days to determine case resolution. If upon review, the applicant does not plan to enter a nursing facility in the immediate future, the case may be terminated as “Did Not Relocate to South Carolina.” If the case is closed for this reason, a CLTC Notification Form is sent.

Upon the applicant's relocation to a non-Phoenix South Carolina nursing facility, the SCDHHS worker will:

- Complete a phone call to the admitting nursing facility within ten (10) business days to determine the final level of care.
- If the applicant appears Medically Ineligible by phone assessment, a visit must be made.
- Issue a Level of Care Certification Letter, SCDHHS Form 185, to the applicant/ ~~primary contact~~ Authorized Representative, the admitting nursing facility, and Medicaid Eligibility Unit.
- Close the Nursing Home application as "Entered Nursing Home" if the applicant meets skilled or intermediate level of care.

Upon the applicant's relocation to a Phoenix South Carolina nursing facility, the SCDHHS worker will:

- Complete a phone call to the admitting nursing facility within ten (10) business days to determine the final level of care.
- Make a visit if the applicant appears Medically Ineligible by phone assessment.
- Issue a Level of Care Certification Letter, SCDHHS Form 185, to the applicant/ ~~primary contact~~ Authorized Representative, the admitting nursing facility, and Medicaid Eligibility Unit.
- Not change the status of the Nursing Home Application.
- Will remove his/ her name from the Nursing Home Application once the certification has been issued.

If the applicant does not meet level of care, the application will be terminated in Phoenix as "Medically Ineligible" as outlined in Chapter 3, section 3.22. The final level of care determination is appealable, and the appeals notice is to be included with the notification.

08.55.20 Applicant Residing in Out-of-State Residence

Upon referral for Nursing Home Placement of an out of state resident in the community, the SCDHHS worker will:

- Mail the CLTC Consent Form, SCDHHS Form 121 to the applicant/ ~~primary contact~~ Authorized Representative
- Instruct the applicant/ ~~primary contact~~ Authorized Representative to sign and return the form to CLTC.

Upon receipt of the signed CLTC Consent Form, the SCDHHS worker will:

- Complete the Assessment by phone with the applicant and/or Authorized Representative and any knowledgeable others, as needed, to obtain accurate information.
- Complete PASRR (PASRR Policy and Procedure in Chapter 9 must be followed.)
- Team conference with another **SCDHHS worker** to determine tentative level of care.
- Document the team conference and tentative level of care in the narrative record.
- Create and send a CLTC Notification Form to the applicant and/or ~~primary contact~~ Authorized Representative and the admitting facility to communicate the tentative level of care.

Note: Do not include the Appeals Notice with this notification because this is a tentative level of care.

The case must be reviewed in sixty (60) calendar days to determine case resolution. Upon review, if the applicant does not plan to enter a nursing facility in the immediate future, the case may be terminated as “Did Not Relocate to South Carolina” and the CLTC Notification is sent.

- The Appeals Notice should not be included as the level of care is tentative.

Upon the applicant's relocation to a non-Phoenix South Carolina nursing facility, the SCDHHS worker will:

- Visit the applicant within ten (10) business days to determine the final level of care;
- Issue a Level of Care Certification Letter, SCDHHS Form 185, to the applicant/ ~~primary contact~~ Authorized Representative, the admitting nursing facility and the Medicaid Eligibility Unit.
- Close the Nursing Home application as "Entered Nursing Home" if the applicant meets skilled or intermediate level of care.

Upon the applicant's relocation to a Phoenix South Carolina nursing facility, the SCDHHS worker will:

- Complete the assessment and team conference with another SCDHHS worker.
- Not change the status of the Nursing Home Application; and
- Remove his/ her name from the Nursing Home Application once the certification has been issued.

If the applicant does not meet level of care, the application will be terminated in Phoenix as "Medically Ineligible" as outlined in Chapter 3, section 3.22. The final level of care determination is appealable, and the appeals notice is to be included with the notification.

08.55.30 Out-of-State Applicant Who Does Not Appear To Meet Level of Care

Upon receiving the completed Assessment from the Out-of-State facility or residence, if the applicant does not appear to meet criteria for level of care, the SCDHHS worker will:

- Contact the applicant/ ~~primary contact~~ Authorized Representative and/ or facility staff to discuss the level of care.

- Contact the physician or physician's office staff to discuss the medical information OR mail the Physician's Input Letter: Community Choices and Nursing Home located in Phoenix HELP.
- Create and send the CLTC Notification Form to the applicant and/or ~~primary contact~~ Authorized Representative, facility, and others, as appropriate, to communicate that based on the information obtained, the applicant does not appear to meet the level of care for South Carolina Medicaid nursing home placement.

Note: The Appeals Notice is not included because this is a tentative level of care.

The Nursing Home Application will be closed as "Medically Ineligible".

08.56 Conversion from Private Pay, Medicare, Other Payment Sources to Medicaid

When a resident exhausts Medicare, private pay or other resources, the resident may be eligible for Medicaid sponsorship.

Medicare remains the primary payment source until one of the following situations occurs:

1. Medicare benefits are exhausted: or
2. An applicant is no longer receiving Medicare reimbursed skilled service(s).

The resident and/or ~~family~~ Authorized Representative must make an application for financial eligibility determination through the SCDHHS Medicaid Eligibility Unit.

When evaluation for a change in payment source to Medicaid primary nursing home payment is needed, the nursing home staff will:

- Create an electronic referral via Centralized Intake (non- Phoenix facilities)

Note: For Phoenix nursing facilities, the facility will create a Request for CLTC

LOC from the applicant's record in the nursing home roster.

- Submit a completed South Carolina Long Term Care Assessment Form 1718.
- Submit two weeks of medical documentation reflecting the participant's status for the conversion date requested.
- Submit a signed and witnessed CLTC Consent Form.
- Documents should be uploaded electronically to Phoenix within ten (10) business days before or after the requested conversion date.

Note: If Form 1718 and medical records are not provided after the SCDHHS worker makes three (3) attempts in obtaining information then the application can be closed.

Note: The **Area Office Designee** will see new uploads from Phoenix nursing facilities under Notifications on the Phoenix dashboard.

- This will show nursing facility level of care (LOC) requests from Phoenix nursing facilities and Non-Phoenix nursing facilities.
- Documents uploaded to Phoenix by the nursing facility will be located under Phoenix Scans- "nursing facility upload."

Following assignment of the application, the SCDHHS worker will:

- Review the completed assessment and medical documentation provided by the facility. If the determination can be made with information provided proceed with the process. If the determination cannot be made with information provided by a phone call, then a visit to the facility to clarify information will be necessary.
- Review signed CLTC Consent Form obtained by the facility.
- Determine Level of Care. SCDHHS worker may sign as the assessor and reviewer for conversion only.

- Document the assessment review, team conference and final level of care in Phoenix.
- Create and send a Level of Care Certification Letter to the applicant/ Authorized Representative, the Medicaid Eligibility Unit, and the admitting nursing facility.
- **For non-Phoenix facilities**, terminate application as “Entered Nursing Home.”

Note: **For Phoenix nursing facilities**, the SCDHHS worker will not change the application status but remove his or her name from the application.

- Route the correspondence file to designated **Support Staff** for processing, as appropriate.

08.56.10 Re-Certification of Nursing Home Cases Pending Medicaid Approval

This section pertains to the applicant that is certified but determined to be financially ineligible and then re-applies for nursing home conversion when he/she becomes financially eligible **within one hundred and eighty (180) calendar days** of the original certification date.

When the applicant has been determined financially eligible, the nursing facility will:

- Create an electronic referral via Centralized Intake **(non- Phoenix facilities)**

Note: **For Phoenix nursing facilities**, the facility will create a Request for CLTC LOC from the applicant’s record in the nursing home roster.

- Submit a new 1718 assessment
- Submit two weeks of medical documentation supporting the applicant’s status for the certification date requested.

(These documents should be uploaded electronically in Phoenix.)

The referral is processed and released to the CLTC Area Office following normal Intake Policy and Procedure.

Application is assigned to the same **SCDHHS worker** who completed the previous certification, if possible.

Following assignment, the SCDHHS worker will:

- Review completed assessment and medical records provided, through visit or by telephone. If the level of care (LOC) is questionable or the applicant requests a face-to-face assessment, then a visit must be made.
- Review signed CLTC Consent Form obtained by the facility.
- Team conference with another **SCDHHS worker** to determine level of care.
- Document the assessment review, team conference and final level of care in Phoenix.
- Create and send a Level of Care Certification Letter to the applicant/~~primary contact~~ Authorized Representative, Medicaid Eligibility Unit, and the admitting nursing facility.

Note: *For Phoenix nursing facilities*, Medicaid Eligibility and the admitting nursing facility have access to the Level of Care Certification Letter in Phoenix.

- Terminate application as “Entered Nursing Home.”

Note: *For Phoenix nursing facilities*, the **SCDHHS worker** will not change the application status. He/ she will remove name from the application in Phoenix to remove from the dashboard.

Note: If the applicant continues to await financial eligibility **past the one hundred eighty (180) calendar day period**, all policies and procedures must be followed regarding Intake, Assessment, and Level of Care. (Including obtaining a new CLTC Consent Form, SCDHHS Form 121).

If the applicant appears to be medically ineligible or if there are any questions concerning the information obtained, a visit must be made to the applicant before the level of care is determined.

08.57 Retroactive Certifications

The nursing facility, the Medicaid Eligibility Unit, and the **SCDHHS worker** should coordinate carefully to assure certifications are issued as close as possible to the date of financial eligibility.

Retroactive level of care certification will not be routinely authorized by the **SCDHHS worker** for more than one (1) year prior to the date of receipt of the referral.

Retroactive certification requests **beyond one (1) year**, must be approved using the following process:

- The SCDHHS worker will inquire as to the delay in submission of certification request.
- The **SCDHHS worker** assigned must discuss/ review the application with the **CLTC Area Office Administrator or designee** in the Area Administrator's absence prior to completing the assessment in Phoenix.
- When documents have been uploaded electronically, the **SCDHHS worker** will seek verbal approval from the area administrator and document the approval in the applicant's narrative record.
- The **CLTC Area Office Administrator** will confer with Central Office as needed and **prior to denying** any retroactive certification requests.
- All requests for retroactive certifications **less than one year** are to be approved by the Area Office Administrator.
- All requests for retroactive certifications **beyond one year require CLTC Upstate or Lowcountry Director approval**. In cases where an applicant is dually eligible for Medicare and Medicaid, and Medicare denies benefits, the CLTC Area Office may complete a certification retroactive to the applicant's date of admission or the date Medicare benefits terminate provided the applicant is medically and financially eligible.

For these cases, the nursing facility will:

- Create an electronic referral via Centralized Intake. **(non- Phoenix facilities)**

Note: *For Phoenix nursing facilities,* the facility will create a Request for CLTC LOC from the applicant's record in the nursing home roster.

- Submit a new 1718 assessment
- Submit two weeks of medical documentation supporting the applicant's status for the certification date requested. (These documents should be uploaded electronically in Phoenix.)
- Submit a cover letter explaining why the retroactive request is being made.
- Submit a copy of the Medicare Denial Letter, if applicable.

The referral is processed and released to the CLTC Area Office following normal Intake Policy and Procedure.

Application is assigned to the same **SCDHHS worker** who completed the previous certification, if possible.

Following assignment, the SCDHHS worker will:

- Review completed assessment and medical records provided. **This review may be a paper review of the submitted medical documentation if all needed information is available and the level of care decision is definitive.** The assessment may be completed by telephone or visit if additional information is needed. If the applicant requests a face-to-face assessment, then a visit must be made.
- Review signed CLTC Consent Form obtained by the facility.
- Team conference with another **SCDHHS worker** to determine level of care.
- Document the assessment review, team conference and final level of care in Phoenix.
- Create and send a Level of Care Certification Letter to the applicant/~~primary contact~~ Authorized Representative, the Medicaid Eligibility Unit, and the admitting nursing facility. The effective date will be the date requested by the facility.

- Terminate application as “Entered Nursing Home.”

Note: *For Phoenix nursing facilities,* the **SCDHHS worker** will not change the application status. SCDHHS worker will remove name from the application.

Note: If the applicant’s level of care has changed between the retroactive date and the current date, the **SCDHHS worker** will advise the facility to make an internal level of care change.

08.58 Corrected Level of Care Certification For Non-Phoenix Nursing Facilities

When a Nursing Facility reports an incorrect Nursing Home Conversion date was requested, a new South Carolina Long Term Care Assessment Form 1718 for the corrected date may be needed.

If the **corrected requested date is prior to the SCDHHS worker’s assessment review period, defined as two (2) weeks prior to the review date/level of care date**, a new referral for Pre-admission Screening for Nursing Home Placement must be made via Centralized Intake. A new South Carolina Long Term Care Assessment Form 1718, new CLTC Consent Form, and two weeks of medical documentation reflecting the applicant’s status on the corrected certification date should be uploaded with the referral.

If the **corrected requested certification date is within the review period** of the last assessment completed by the **SCDHHS worker** and the assessment was completed by the **SCDHHS worker** within 180 calendar days, a new South Carolina Long Term Care Assessment Form 1718 is not required. The **SCDHHS worker** will create a new corrected Level of Care Certification in Phoenix and document this action in the narrative record.

If the **corrected requested certification date is after the previously requested certification date and included in the thirty (30) calendar day time frame of the Level of Care Certification**, the only action needed by the **SCDHHS worker** is documentation in the Narrative.

If the **corrected certification date is prior to the previously requested Level of Care Certification date and included in the SCDHHS worker’s review period** but the assessment is greater than one hundred-eighty (180) calendar days, a Phoenix problem will be reported, and the correction will be made.

If the **corrected Level of Care Certification date is later than the previously requested certification date and was not included in the thirty (30) calendar day time frame of the original certification**, the facility will be required to make a new referral, submit a new South Carolina Long Term Care Assessment 1718 Form, a new CLTC Consent Form and two weeks of medical documentation

reflecting the applicant’s status for the corrected certification date.

08.59 Corrected Level of Care for Phoenix Nursing Facilities

The nursing facility needs to request a second LOC Request from CLTC for a different date.	• The nursing facility will create a letter requesting the Level of Care and will upload the letter, assessment and supporting documentation to Phoenix. • This will create a notification to the area office dashboard. • The case will be assigned to a SCDHHS worker to create a new assessment and team staff a new level of care. • Once the new level of care has been determined, the nursing facility will receive a Phoenix notification.
The nursing facility reports an incorrect certification date was previously requested. The previously requested date is prior to the corrected certification date. CLTC has already completed an assessment for the incorrect date. The corrected date was not included in the SCDHHS worker’s review.	• The nursing facility will submit a new 1718 assessment and supporting documentation reflecting the applicant’s condition for the new date. • This will create a notification on the CLTC area office dashboard. • The case will be assigned to a SCDHHS worker to create a new assessment and team staff a new level of care (LOC) • The nursing facility will receive a Phoenix notification when the Level of Care has been determined
The nursing facility reports an incorrect certification date was previously requested. The corrected certification date is later than the date previously requested. CLTC has already completed the assessment and certification for the incorrect date. The corrected date was not included in the level of care certification period.	• A new 1718 and supporting documentation reflecting the applicant’s condition for the time of the new requested date are needed. • When the nursing facility uploads the documents in Phoenix, a notification is created. The assigned SCDHHS worker will create a new assessment in Phoenix and team staff a new level of care (LOC) with another SCDHHS worker. • The nursing facility will receive a Phoenix notification when the Level of Care has been determined.

The nursing facility reports they have requested an incorrect level of care certification date after the SCDHHS worker has completed the level of care certification. The corrected level of care request date is prior to the original request date and included the SCDHHS worker's review period.	• The nursing facility will contact the SCDHHS worker to provide the correct date. • The SCDHHS worker will document this request in the participant's narrative and review the record to determine whether the new requested date was included in the original level of care review. • If the SCDHHS worker approves the level of care certification date change, the SCDHHS worker will Report a Problem in Phoenix including the participant's CLTC number, the corrected level of care certification date and the level of care.
A Phoenix nursing facility reports they have requested an incorrect level of care certification date after the SCDHHS worker has completed the level of care certification. The corrected level of care request date is after the original request date and included in the 30-calendar day certification period of the current level of care certification.	• . The nursing facility will contact the CLTC Area Office to inform of the error. • The SCDHHS worker will document in the narrative. • No further action is needed by CLTC if the corrected Level of Care is within the 30 calendar days included on the Level of Care Certification Letter. • The nursing facility will enter the correct admission date in Phoenix which will prevent any billing issues.

08.60 Other Institutional Nursing Care Programs

08.61 Administrative Days

An applicant may be eligible for Administrative Days if the following criteria is met:

- Is Medicaid eligible (regardless of age),
- Is residing in an acute care hospital,
- Has received acute care services,
- Is no longer requiring acute care,
- Has exhausted other payment sources,
- Meets (or tentatively meets) the South Carolina Medicaid nursing facility Level of Care Criteria as determined by CLTC and
- Has a nursing home location choice.

The **SCDHHS worker** will relay the tentative level of care using the CLTC Notification Form.

This Notification Form will be used by the hospital for billing Administrative Days.

The use of the tentative level of care is reserved for those applicants who are expected to be admitted to a nursing facility **within fourteen (14) calendar days**. The application will remain open pending hospital discharge.

If the stay exceeds **fourteen (14) calendar days**, the final level of care will be determined by the **SCDHHS worker** and a Level of Care Certification, DHHS Form 185, will be issued.

The effective date and expiration date on the Level of Care Certification should not be completed for Administration Days certification.

Once a Level of Care Certification Letter is issued, the application is terminated as "Entered Administrative Days."

If the applicant is determined to be medically ineligible, the **SCDHHS worker** closes the application as “Medically Ineligible,” and completes the Level of Care Certification, DHHS Form 185.

This certification or CLTC Notification Form is valid indefinitely unless CLTC is notified by the hospital that the applicant is to be admitted into a nursing facility.

The nursing home re-certification policy may be followed when/ if the applicant enters a nursing facility.

The SCDHHS worker will route the applicant’s correspondence file to the designated Area Office Support Staff for mailing and processing, as appropriate.

08.61.11 Waiver Participant Entering Administrative Days

If a waiver participant chooses to enter Administrative Days, the **Case Manager** and/ or hospital staff member will create an electronic Pre-Admission Review for Nursing Home Placement Application via Centralized Intake.

The application will be released to the area office and assigned to a **SCDHHS worker**.

The level of care certification effective date and expiration date should not be completed for Administrative Day certification.

The Case Manager must terminate the participant’s waiver application as “Entered Administrative Days” when the participant meets level of care and enters Administrative Days.

If the participant is determined to be medically ineligible, the applicant and case must be closed as “Medically Ineligible.” The CLTC Notification Form, including the Appeals Notice, must be issued.

The **Case Manager** is responsible for terminating the participant’s waiver services and application per normal policy and procedure.

When/ if the participant enters a nursing home, the recertification policy may be followed.

08.61.12 Re-Certification for Nursing Home Admission

An individual in the Administrative Days program can be re-certified **within**

a one hundred eighty (180) calendar day period from the original date of certification, if the individual enters a nursing home under primary Medicaid payment from the Administrative Days Program. The following process will be followed:

- An electronic referral must be made via Centralized Intake.
- The Consent Form, DHHS Form 121 will remain valid **for the one hundred eighty (180) calendar day period**.
- The choice of location for services must be verified again and documented in the Narrative.
- The **SCDHHS worker** completes the assessment through a visit or telephone contact with the applicant, discharge planner, social worker and/ or others, as appropriate. If the level of care (LOC) is questionable or the applicant requests a face-to-face assessment, then a visit must be made.
- The **SCDHHS worker** will team staff the level of care determination with another **SCDHHS worker**.

Note: If the participant appears to be medically ineligible, a visit must be made prior to the final level of care determination.

- The **SCDHHS worker** will issue the Level of Care Certification Letter to the applicant/ Authorized Representative and the admitting nursing facility.
- The **Case Manager** will terminate the participant's applications and/ or case as "Entered the nursing home."

Note: *Applications for participant's entering Phoenix nursing facilities will not be terminated in Phoenix.*

- The **Case Manager** will notify the **designated Area Office Support Staff** to update the MMIS / RSP to reflect waiver termination.

If a request for certification is received **after the one hundred eighty (180) calendar day period**, the case must be processed

following policy and procedures for intake, assessment, and level of care. The **SCDHHS worker** must visit the applicant, complete a Consent Form and DHHS Form 121

Exception: If an applicant is entering the nursing facility under primary Medicare payment, the Level of Care Certification, DHHS 185, will not be issued.

08.61.13 Special Situations in Dealing with Administrative Days

- If an applicant has been discharged from a hospital and was never seen by CLTC, hospital should contact the South Carolina Department of Health and Human Services' Division of Hospitals regarding Administrative Days. The hospital will be asked to forward physician's progress notes for review.
- If the individual has been discharged from the hospital and was seen by CLTC while in the hospital, the CLTC Notification Form issued with the tentative level of care, or the Level of Care Certification Letter may be used by the hospital for billing purposes.
- If the individual is currently in the hospital and the hospital requests retroactive Administrative Days, the Level of Care Certification Letter will be issued based on the applicant's current condition.

Note: If the individual appears medically ineligible at the time of the Administrative Days request, but based on medical records, appeared to meet level of care for the date requested, the corresponding end date of certification will be entered on the Level of Care Certification Letter.

- If a hospital requests Administrative Days and the individual is not currently eligible for Medicaid, CLTC will determine the level of care following normal policy and procedure. CLTC is only verifying medical eligibility (not financial eligibility) by issuance of the Level of Care Certification, DHHS Form 185.
- If the individual changes from Administrative Days to Acute Care and then back to Administrative Days within the same hospital stay, a new Level of Care Certification Letter or CLTC Notification Form is not required with each change.

08.62 Subacute Care

The Subacute Care Program is a program for ventilator dependent patients.

- Prior hospitalization is not required. The applicant may be admitted from a community setting.
- All applicable PASRR regulations and policy and procedure apply.
- All applicable nursing home placement assessment and level of care policy and procedure apply.
- A nursing home location choice is not required.
- A Level of Care Certification Letter will be issued.
- The certified level of care must be skilled and the Subacute Care block on the letter will be checked.
- The case will be terminated as "Entered Nursing Home"

Note: *For Phoenix facilities, the application will not be terminated.*

08.63 Swing Bed

A swing bed is a nursing home bed which is located in a hospital with a swing bed contract with South Carolina Department of Health and Human Services.

Prior to admission under Medicaid, the applicant must meet the South Carolina Level of Care Criteria (skilled or intermediate) and have a nursing home location choice.

Medicare swing bed should be explored as an option first.

Prior or recent hospitalization is not required. Applicants may be admitted to swing beds from community settings.

Assessment, level of care and PASRR policy and procedures apply.

Once the applicant is determined to be medically eligible, the **SCDHHS worker** will issue a Level of Care Certification Letter.

The case will be terminated as "Entered Nursing Home."

08.64 Hospice Enrolled Applicants Seeking Nursing Home Certification

If an applicant receives a Medicare qualifying skilled service for a condition unrelated to the terminal diagnosis, Medicare will pay the nursing facility and the hospice benefit.

If an applicant receives a Medicare qualifying skilled service for a condition related to the terminal diagnosis, Medicare will only pay the hospice benefit. In this situation, CLTC will certify for Medicaid if Medicaid criteria is met.

If the applicant is not Medicare eligible, Medicaid certification will be completed following normal certification policy and procedure.

Applicants who are enrolled in the hospice benefit must meet the same requirements for re-certification as other applicants.